

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #07	CCRB Case #: 202409832	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 09/30/2024 6:28 PM	Location of Incident: § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]	18 Mo. SOL 3/30/2026	Precinct: 43
Date/Time CV Reported Wed, 10/02/2024 3:29 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/02/2024 3:29 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. SGT Kevin Ceden	01350	960346	PSA 8
3. PO Zohaib Rafi	01329	947373	PSA 8

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Scott Schulman	01942	955464	043 DET
2. PO Justin Lezcanoortiz	08975	974271	PSA 8
3. PO Wilson Torres	02027	970900	PSA 8
4. DTS Juan Germanfrias	06063	953903	PSA 8
5. PO Daneiry Rosado	20728	978986	PSA 8
6. PO Chase Regil	02904	978738	PSA 8
7. PO George Rubio	04447	974498	PSA 8
8. PO Devin Santiago	11292	974522	PSA 8
9. PO Raquel Sanchez	08230	970838	PSA 8

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Kevin Ceden	Abuse: Sergeant Kevin Ceden entered § 87(2)(b) [REDACTED] in the Bronx.	A . Substantiated
B . An officer	Force: An officer hit § 87(2)(b) [REDACTED] against a wall.	B . Officer(s) Unidentified
C . PO Zohaib Rafi	Force: Police Officer Zohaib Rafi used physical force against § 87(2)(b) [REDACTED]	C . Within NYPD Guidelines

Case Summary

On October 2, 2024, § 87(2)(b) called the CCRB and filed this complaint.

On September 30, 2024, 6:28 p.m., § 87(2)(b) called 911 to summon officers to his home, located at § 87(2)(b) in the Bronx, regarding a complaint he wished to file. Multiple officers from PSA 8, including Sgt. Kevin Ceden, PO Wilson Torres, PO Justin Lezcano-Ortiz, and PO Zohaib Rafi, arrived at § 87(2)(b) apartment. Sgt. Ceden told § 87(2)(b) “Just have one of my officers step inside. We’re gonna help you out with the report,” and he entered § 87(2)(b) apartment (**Allegation A -Abuse of Authority: Entry of premises, Substantiated**). While officers were inside the apartment, they handcuffed § 87(2)(b) and, during this process, an officer allegedly slammed § 87(2)(b) head against a wall (**Allegation B -Force: Physical force, Officer Unidentified**). After § 87(2)(b) was handcuffed, he spoke with officers and stood near PO Rafi, who pushed § 87(2)(b) (**Allegation C -Force: Physical force, Within NYPD Guidelines**). Officers transported § 87(2)(b) to the 43rd Precinct stationhouse and lodged him in a holding cell until officers from the 43rd Precinct Detective Squad spoke with him, resulting in no further processing.

Video footage obtained in this case came from two sources: footage recorded by multiple officers on their Body-Worn Cameras (BWCs) and provided by the NYPD’s Legal Bureau (Board Review 01 to 09); and footage recorded by residential surveillance cameras and provided by § 87(2)(b) (Board Review 10).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Kevin Ceden entered § 87(2)(b) in the Bronx.

It is undisputed that at approximately 6:28 p.m. on September 30, 2024, Sgt. Kevin Ceden, PO Wilson Torres, and PO Justin Lezcano-Ortiz arrived at § 87(2)(b) apartment, located at § 87(2)(b) in the Bronx, in response to a call § 87(2)(b) placed to file a report regarding the mother of his children, § 87(2)(b). The officers arrived at § 87(2)(b) home and spoke with him, and Sgt. Ceden subsequently entered § 87(2)(b) home.

§ 87(2)(b) stated to the CCRB (Board Review 11) that after Sgt. Ceden, PO Rafi, PO Torres, and PO Lezcano-Ortiz arrived in response to his call, he spoke with an officer about his complaint, standing fully inside of his apartment, holding his daughter in his arms, and standing next to his son. An officer then asked § 87(2)(b) whether officers could enter his home to take his complaint, and § 87(2)(b) denied this consent, stating that officers could take the complaint in the area they were. § 87(2)(b) told officers, “Excuse me. Let me close my door.” Officers mentioned an I-Card and said, “Let’s just get this over with, § 87(2)(b).” After this, officers, including Sgt. Ceden, entered his apartment.

In the BWC footage Sgt. Ceden recorded (Board Review 01), at the 07m10s mark, Sgt. Ceden walks to the entry door of § 87(2)(b) apartment. A child stands outside of the apartment, in the hallway. § 87(2)(b) stands slightly inside the open entry door of the apartment, and PO Torres stands next to him in the door jam, partially inside the apartment and viewing the screen of a cell phone that § 87(2)(b) displays to him. PO Torres takes the phone from § 87(2)(b) and operates it. Sgt. Ceden and § 87(2)(b) discuss § 87(2)(b) interactions with § 87(2)(b) and the nature of § 87(2)(b) complaint against her. At the 08m23s mark, Sgt. Ceden says, “Alright. So, § 87(2)(b) so, uh, just have one of my officers step inside. We’re gonna help you out with the report.” § 87(2)(b) steps to his left, moving further into the apartment interior. At the 08m30s mark, Sgt. Ceden says, as he enters the apartment, “Um, so, yeah. So just gotta let you know. So, there was a report done a few day, uh, a few months ago. We’re just gonna have to close that out, okay? So that

way, you don't have any issues." § 87(2)(b) says, "What do you mean?" Sgt. Cedenó says, "So there was a report against you done. So we gotta take you back to the 43rd Precinct just to get that situated." § 87(2)(b) says, "Man, listen. I can't do that right now. Ain't nobody here for my kids." Sgt. Cedenó says, "No, no, no. We're gonna take care of that for you. Is anyone else in the house?" § 87(2)(b) says, "Ain't nobody here but me. I can't go with you right now. So please exit my home." Sgt. Cedenó says, "No. Just for now, just do us a favor. Just come with us. Just come over here."

Sgt. Cedenó stated to the CCRB (Board Review 12) that before he arrived at § 87(2)(b) apartment, he was informed by a desk officer that § 87(2)(b) had an open I-Card. Sgt. Cedenó searched for this on his Department-issue phone and viewed a DAS Snapshot of § 87(2)(b) which included a listing of I-Card § 87(2)(b). This I-Card had an active status, an activation date of January 14, 2024, and type PC to arrest for Penal Law 120.00 assault 3rd. Sgt. Cedenó provided this Snapshot to the CCRB (Board Review 13). Sgt. Cedenó instructed PO Torres or PO Lezcano-Ortiz to confirm with the 43rd Precinct detective squad whether the I-Card remained active, and they did this, confirming that it did. At § 87(2)(b) apartment, officers spoke with him at the entry door about the reason for his call. Sgt. Cedenó listened for a couple of minutes and then asked § 87(2)(b) if he continued to experience issues with § 87(2)(b). Sgt. Cedenó's intent at this time was to continue his investigation into § 87(2)(b) complaint and to inform § 87(2)(b) that he would be taken into custody for the active probable cause I-Card.

Sgt. Cedenó requested § 87(2)(b) consent for officers to enter the apartment to assist him in creating a report for his complaint. Sgt. Cedenó asked for § 87(2)(b) consent because this consent was necessary for Sgt. Cedenó to enter the apartment. § 87(2)(b) moved to the side, which Sgt. Cedenó inferred to be § 87(2)(b) consent for officers to enter his apartment, and did not resist the officers' entry in any way. Sgt. Cedenó entered the apartment because he intended to have a Domestic Incident Report (DIR) prepared and arrest effected.

PO Lezcano-Ortiz stated to the CCRB (Board Review 14) that he and PO Torres transported § 87(2)(b) to the 43rd Precinct stationhouse from his apartment. At the stationhouse, PO Lezcano-Ortiz and PO Torres explained to the desk officer what happened and that § 87(2)(b) was there to see someone from the detective squad. The desk officer instructed the officers to lodge § 87(2)(b) in a detective squad holding cell, which they did, and they informed Sgt. Cedenó that they had done so. Sgt. Cedenó instructed the officers to prepare a Domestic Incident Report (DIR) for § 87(2)(b). PO Lezcano-Ortiz obtained information from § 87(2)(b) created a DIR for him, and provided a copy of it to him. PO Lezcano-Ortiz created the report because Sgt. Cedenó instructed him to do so and because § 87(2)(b) had requested that officers make a report. PO Lezcano-Ortiz did not know the DIR number, have it noted in his memo book, or know at approximately what time he generated it.

A request to the NYPD for all DIRs generated between September 20, 2024 and October 3, 2024 and associated with § 87(2)(b) and § 87(2)(b) returned two results, a DIR generated on October 2, 2024 by PO Nerys Ramirez of PSA 8 and a DIR generated on October 3, 2024 by PO Haidar Darwish of PSA 8 (Board Review 15). A request to the NYPD for all DIRs prepared by PO Lezcano-Ortiz for § 87(2)(b) between September 30, 2024 and October 1, 2024 yielded negative results (Board Review 16).

In People v Gonzalez, 39 N.Y.2d 122 (Board Review 17), it was found that consent (in that case for a warrantless search) must be an unequivocal product of an essentially free and unconstrained choice and is incompatible with official coercion and pressure, whether it is subtle, overt, actual, or implicit. Voluntariness of consent was considered under a totality of circumstances, including whether the consenter was uncooperative with enforcement authorities before or even after the

consent and whether the consenter was advised of the right to refuse to consent.

In People v. Jefferson, 43 A.D.2d 112 (Board Review 23), the Court found that an officer's use of a ruse to gain access to an individual's apartment was violative of the individual's constitutional rights.

People v. Jakubowski, 100 A.D.2d 112 (Board Review 24) notes that in cases involving consent (in that case for a warrantless search), the individual providing consent may impose specific conditions on the nature of the consent, may limit the scope of officer actions to which are being consented, and may revoke the consent. Where officers exceeded the conditions or scope set forth in the consent or where the consent was revoked, the actions previously consented to were deemed invalid.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Substantiated**.

Allegation (B) Force: An officer hit § 87(2)(b) against a wall.

§ 87(2)(b) stated to the CCRB (Board Review 11) that after officers entered his apartment, they pulled him out of the apartment into a hallway and turned him around such that he faced a wall and away from officers. An officer handcuffed one of § 87(2)(b) wrists. § 87(2)(b) took hold of the free handcuff and held it with the intent of preventing officers from placing it on his other wrist. § 87(2)(b) tensed his arms to prevent PO Lezcano-Ortiz and other officers from holding and handcuffing them together. An officer § 87(2)(b) could not see held the back of his neck and head and pushed forward, causing his head to strike the wall in front of him.

The BWC footage recorded by multiple officers captures the period of time within this incident during which time officers and § 87(2)(b) moved from the apartment's interior to its exterior, officers attempted to handcuff § 87(2)(b) and § 87(2)(b) tensed his arms to prevent this. This is most clearly captured in the following footage: that PO Regil recorded (Board Review 02), from the 06m25s mark to 07m05s mark; that PO Torres recorded (Board Review 03), from the 09m40s mark to the 11m10s mark; that Sgt. Cedenro recorded (Board Review 01), from the 09m42s mark to the 11m10s mark; and that PO Rosado recorded (Board Review 04), from the 06m10s mark to the 07m10s mark. In these portions of footage, § 87(2)(b) repeatedly requests that an officer handcuff § 87(2)(b) to the officer himself and that § 87(2)(b) be permitted to retrieve his phone and call his brother to request care for his children. § 87(2)(b) head is, at times, against a wall. No specific officer action appears to cause § 87(2)(b) head to move into this position, and § 87(2)(b) head does not appear to strike the wall. No officer can be seen touching § 87(2)(b) head. § 87(2)(b) makes no statements suggesting that his head struck the wall.

Sgt. Ceden0 (Board Review 12), PO Lezcano-Ortiz (Board Review 14), and PO Torres (Board Review 18) were all present in the vicinity of § 87(2)(b) during the process of his being handcuffed, with PO Lezcano-Ortiz and Sgt. Ceden0 acknowledging participating in the process. PO Lezcano-Ortiz and Sgt. Ceden0 both denied taking hold of § 87(2)(b) head or causing it to strike a wall, and PO Torres denied seeing this occur. All three officers denied hearing § 87(2)(b) complain of this occurring.

The available BWC footage does not depict an officer striking § 87(2)(b) head against a wall when his head is visible and yields few lapses in view of § 87(2)(b) head during the period of time during which officers attempt to handcuff him. § 87(2)(g)

§ 87(2)(b) was unable to describe the officer who pushed his head such that it struck a wall. No officer interviewed in this case acknowledged either taking or witnessing this action. § 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Officer Unidentified**.

Allegation (C) Force: Police Officer Zohaib Rafi used physical force against § 87(2)(b)
§ 87(2)(b) stated to the CCRB (Board Review 11) that while he and officers waited inside § 87(2)(b) apartment for his brother to arrive, PO Rafi held onto § 87(2)(b) clothing. § 87(2)(b) requested permission to kiss his son and bent over. PO Rafi pushed § 87(2)(b) back and said, “Yo, bro. Don’t move.” § 87(2)(b) did not want his jewelry confiscated and attempted to remove some of it, with this including his wiggling gold teeth in his mouth and telling an officer he was attempting to put his gold teeth down. § 87(2)(b) attempted to spit the gold teeth out. PO Rafi pushed § 87(2)(b) and said, “Just stand there.”

The BWC footage Sgt. Ceden0 recorded (Board Review 01) depicts § 87(2)(b) and PO Rafi during the period of time surrounding this allegation, from the 18m17s mark to the 18m45s mark. During this period, § 87(2)(b) states that a female kicked his door open the prior week. § 87(2)(b) leans forward and says, “Excuse me. Let me put my wallet up there. PO Rafi, standing to the left of the frame and to § 87(2)(b) right, removes a wallet from § 87(2)(b) right hand; PO Regil removes the wallet from PO Rafi’s hand. § 87(2)(b) says, “And excuse me. Can I grab one thing?” and leans his upper body forward, taking no steps forward. PO Rafi places an open right palm against the lower portion of § 87(2)(b) chest. § 87(2)(b) body does not significantly move. § 87(2)(b) tells Sgt. Ceden0, “I’m asking you to do me a favor, and he keep pushing me.” § 87(2)(b) turns to PO Rafi and says, “Stop pushing me.” PO Rafi says, “You’re moving that way.” § 87(2)(b) says, “Because I’m asking the sergeant to do something. Don’t push me again.” Sgt. Ceden0 instructs § 87(2)(b) to talk to him. § 87(2)(b) requests that Sgt. Ceden0 obtain an identification card from a pile of cards and then retracts the request when an officer says they have his identification card already. PO Rafi holds his open palm against § 87(2)(b) during this process. § 87(2)(b) tells PO Rafi, “See how easy that was?” PO Rafi says, “You’re not making it easy.” Later, at the 21m50s mark, as PO Rafi holds § 87(2)(b) right arm, § 87(2)(b) moves to a table and spits something onto it.

The NYPD Patrol Guide, Section 221-01 (Board Review 19) states that when gaining control of a subject, officers are to use de-escalation techniques, when appropriate and consistent with safety, to gain voluntary compliance and to use the minimum force necessary when de-escalation is not appropriate.

- § 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 7

Investigator:	<u>Chris Anderson</u>	<u>SI Chris Anderson</u>	<u>11/12/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Vanessa Rosen</u>	<u>Manager Vanessa Rosen</u>	<u>11/12/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date